



CHAPTER xix.

An Act to empower the lord mayor aldermen and citizens of the city of Birmingham to construct waterworks to make further provision in reference to the Birmingham Municipal Officers' Widows' and Orphans' Pensions Scheme and for other purposes.
[13th June 1940.]

WHEREAS the lord mayor aldermen and citizens of the city of Birmingham (in this Act called "the Corporation") were empowered by the Birmingham Corporation Water Act 1892 to construct and maintain the waterworks and other works mentioned in that Act and to take collect divert impound and use all the waters of the rivers Elan and Claerwen at and above the dam of the Caban Côch reservoir authorised by that Act and of the tributary streams and springs of the said rivers above that dam :

55 & 56
Vict.
c. clxxiii.

And whereas the greater part of the works authorised by the Act of 1892 has been constructed and it is expedient to empower the Corporation to abandon the construction of certain of the works and to construct and maintain the works mentioned in this Act :

And whereas by the Birmingham Municipal Officers' Widows' and Orphans' Pensions Scheme to which full force and effect was given by section 81 of the Birmingham Corporation Act 1935 provision was

25 & 26 Geo. 5.
c. cxvii.

made for the formation of a fund for providing pensions for the widows and orphans of officers on the administrative technical professional and clerical permanent staff of the Corporation :

And whereas it is expedient to amend the said scheme as in this Act provided :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

For and in connection with the purchase of lands under the powers of this Act	£7,500
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For and in connection with the construction of the works authorised by this Act . . .	£1,021,000
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And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed :

23 & 24
Geo. 5. c. 51.

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerks of the county councils of the counties of Brecknock Cardigan and Radnor and are hereinafter respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this

present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1.—(1) This Act may be cited as the Birmingham Corporation Act 1940. Short and collective titles.

(2) The Birmingham Corporation Acts 1876 to 1936 the Birmingham Gas Order 1928 the Birmingham and Sutton Coldfield Order 1931 the Birmingham Gas Order 1934 the Birmingham Gas Order 1935 and this Act may be cited jointly as the Birmingham Corporation Acts 1876 to 1940.

2. This Act is divided into Parts as follows:— Division of Act into Parts.

Part I.—Preliminary.

Part II.—Water.

Part III.—Officers' Widows' and Orphans' Pensions Scheme.

Part IV.—Finance and miscellaneous.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

(a) The Lands Clauses Acts with the following exceptions and modification:—

(i) sections 127 to 132 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act; 8 & 9 Vict. c. 18.

(ii) the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section;

(b) The Waterworks Clauses Act 1847 except— 10 & 11 Vict. c. 17.

(i) the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" in section 44;

PART I.
—cont.

(ii) sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit); and

(iii) section 83 (with respect to the yearly receipt and expenditure of the undertakers);

(c) The Waterworks Clauses Act 1863; and

(d) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act “the railway” means the works authorised by this Act and “the centre of the railway” means the centre of any of such works respectively or in the case of the reservoir authorised by this Act the boundaries of that reservoir.

26 & 27
Vict. c. 93.
8 & 9 Vict.
c. 20.

Interpre-
tation of
terms.

26 Geo. 5. &
1 Edw. 8.
c. 49.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1936 shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“The city” means the city of Birmingham;

“The Corporation” means the lord mayor aldermen and citizens of the city of Birmingham;

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the city;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“The water undertaking” means the water undertaking of the Corporation;

“The Act of 1892” means the Birmingham Corporation Water Act 1892;

9 & 10
Geo. 5.
c. 57.

“The Act of 1933 ” means the Local Government
Act 1933;

PART I.
—cont.

“The Act of 1936 ” means the Public Health
Act 1936;

“The Minister ” means the Minister of Health.

PART II.

WATER.

Lands.

5. Subject to the provisions of this Act the Corporation may enter upon take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference which they may require for the purposes of the works authorised by this Act and other the purposes of the water undertaking.

Power to
take
lands.

6. The powers granted by this Act for the compulsory purchase of lands shall cease after the expiration of three years from the passing of this Act.

Period for
compulsory
purchase
of lands.

7. If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or described in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the place in which the lands are situate for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate or a copy thereof shall be deposited with the clerk of the county council of the county in which the lands are situate and a duplicate thereof shall also be deposited with the clerk of the county district in which the lands are situate and if the lands are situate in a rural parish having a parish council also with the clerk of that council and such certificate and duplicate respectively shall be kept by such clerks respectively

Correction
of errors in
deposited
plans and
book of
reference.

PART II.
—cont.

with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with the certificate.

**Further
powers of
entry.**

8. At any time after notice to treat has been served for any land which the Corporation are by this Act authorised to purchase compulsorily the Corporation may after giving to the owner and occupier of the land not less than one month's notice enter on and take possession of the land or such part thereof as is specified in the notice without previous consent or compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845 but subject to the payment of the like compensation for the land of which possession is taken and interest on the compensation awarded as would have been payable if those provisions had been complied with.

**Power to
purchase
additional
lands by
agreement.**

9.—(1) The Corporation in addition to any other lands acquired or held by them in pursuance of this Act may by agreement purchase take on lease acquire and hold for the purposes of the water undertaking any lands or any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) over or in respect of lands which the Corporation deem necessary for those purposes.

(2) Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor (without the approval of the Minister) erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the water undertaking but the restrictions of this section shall not apply in respect of lands leased or sold by the Corporation.

**Compensa-
tion may
be in land
&c.**

10. The Corporation when they are required by this or any other enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or

partly in works land or money but in the case of land for the alienation of which the consent of any Government department is required only with such consent.

PART II.
—cont.

11. The powers of the Corporation of purchasing lands by agreement shall be deemed to extend to and to authorise the purchase by the Corporation by agreement of any lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be acquired by them for the purposes of this Act.

Purchase
of lands
for
exchange.

12. The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the works authorised by the Act of 1892 or this Act with reference to the execution by the Corporation or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which the Corporation are by the Act of 1892 authorised to take collect divert impound and use.

Power to
agree as to
drainage
of lands
&c.

13. The Corporation may subject to the provisions of this Act enter into and carry into effect agreements with any person being the owner of or interested in any lands houses or property abutting on any portion of the lands which the Corporation may acquire under the powers of this Act with respect to the sale by the Corporation to such person of any lands or property for such consideration as may be agreed upon between the Corporation and such person and the Corporation may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or property required by the Corporation for the purposes of this Act.

Agree-
ments with
owners of
property
&c.

14. The Corporation may purchase or take on lease and maintain houses and buildings for persons in their employment in connection with the water undertaking and the Corporation may also erect maintain and let any houses and buildings upon any land for the time being belonging or leased to the Corporation for those purposes.

Dwelling-
houses for
employees
and other
buildings.

PART II.

—cont.

Power to
make
works.*Works.*

15.—(1) Subject to the provisions of this Act the Corporation may make and maintain and from time to time alter renew and reconstruct upon the lands shown on the deposited plans and described in the deposited book of reference and in so far as the same are shown on the deposited plans and sections in the lines and according to the levels so shown the works hereinafter mentioned.

The said works will be situate in the counties of Brecknock Cardigan and Radnor and are—

Work No. 1 An impounding reservoir (to be called the Claerwen reservoir) in the parish of Caron-uwch-Clawdd in the rural district of Tregaron the parish of Llansantffraid-Cwmdeuddwr in the rural district of Rhayader and the parish of Llanwrthwl in the rural district of Builth to be situate above the Caban Côch reservoir and to be formed by means of a dam across the river Claerwen;

Work No. 2 A diversion in the said parish of Llansantffraid-Cwmdeuddwr of the bridle road leading from Cerig-Cwplau to Claerwen;

Work No. 2A A diversion in the said parish of Llansantffraid-Cwmdeuddwr of the last-mentioned bridle road;

Work No. 3 A road in the parish of Upper-Gwnnws in the rural district of Tregaron and the said parishes of Caron-uwch-Clawdd and Llanwrthwl (including bridges over the rivers Claerddu and Brwynog) commencing in the existing bridle road from Ffair-Rhos to Claerwen and terminating at or near to the westerly end of the dam across the river Claerwen forming part of Work No. 1;

Work No. 4 A road in the said parishes of Llanwrthwl and Llansantffraid-Cwmdeuddwr (including a bridge over the river Claerwen) commencing at the termination of Work No. 3 and terminating at the easterly end of the said bridge;

Work No. 5 A road in the said parish of Llansantffraid-Cwmdeuddwr commencing at the termination of Work No. 4 and terminating by a junction with the road from Cwm-Clyd to Dol-y-Mynach;

PART II.
—cont.

Work No. 6 An improvement widening and partial diversion in the said parish of Llansantffraid-Cwmdeuddwr of the existing road from Cwm-Clyd to Dol-y-Mynach commencing at the termination of Work No. 5 and terminating in the said existing road.

(2) In addition to the works hereinbefore described the Corporation may upon any lands for the time being belonging to them (not being land held by them upon any charitable trust) or over which they have or obtain easements make and maintain all such buildings machinery roads tramroads footpaths filters works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the Corporation's waterworks or necessary for inspecting maintaining repairing cleansing managing working or using the same but nothing in this subsection shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

16. In the construction of the works authorised by this Act the Corporation may deviate to any extent not exceeding the limits of deviation shown on the deposited plans and they may also deviate from the levels shown on the deposited sections to any extent not exceeding ten feet upwards and to any extent downwards:

Limits of
deviation.

Provided that the Corporation shall not construct the dam of the reservoir Work No. 1 of a greater height above the general surface of the ground than that shown on the deposited sections in respect of that dam and three feet in addition.

17.—(1) If the works authorised by this Act are not completed within seven years from the passing of this Act then on the expiration of that period the

Period for
completion
of works.

PART II.
—cont.

powers by this Act granted for making and completing such works or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

(2) Provided that the Corporation may subject to the provisions of the last preceding section extend enlarge alter reconstruct renew or remove any of the works authorised by this Act as and when occasion may require.

Use of
Claerwen
reservoir.

18. The Claerwen reservoir may be used by the Corporation for the purpose of taking collecting diverting and impounding any water which by the Act of 1892 the Corporation are empowered to take collect divert and impound.

Compensa-
tion water.

19. As from the date of the first filling of the Claerwen reservoir section 28 (Compensation water) of the Act of 1892 shall have effect as if—

- (1) in subsection (1) for the words “twenty-seven million gallons of water per day” there were substituted the words “twenty-nine million gallons of water per day”; and
- (2) in subsection (2) for the words “twenty-two million gallons” wherever those words are used there were substituted the words “twenty-four million gallons.”

Mainten-
ance of
roads
bridle
roads and
footpaths.

20.—(1) The roads bridle roads and footpaths to be made by the Corporation under the powers of this Act shall after the completion thereof respectively be maintained by the Corporation but the Corporation shall not be under obligation to make or maintain any such road bridle road or footpath of a width or of a strength more than sufficient to serve the agricultural requirements of the district in which it is made as existing at the passing of this Act.

(2) The Corporation may erect and maintain such gates across the said roads bridle roads and footpaths as they may consider necessary for the agricultural requirements of the district as existing at the passing

of this Act or for the protection of the works of the Corporation but the Corporation shall not keep such gates locked.

PART II.
—cont.

21. The Corporation may stop up the public roads
bridle roads and footpaths shown on the deposited
plans as intended to be stopped up :

Power to
stop up
roads
bridle
roads and
footpaths.

Provided that where it is shown on the deposited
plans that a road bridle road or footpath is to be
diverted the existing road bridle road or footpath shall
not be stopped up (except temporarily under section 23
(Temporary stoppage of roads bridle roads and foot-
paths) of this Act) until the diversion has been
completed and is open for public traffic.

22.—(1) The Corporation shall abandon the con-
struction of the following works authorised by the Act
of 1892 (that is to say) :—

Abandon-
ment of
certain
works
authorised
by Act of
1892.

Work No. 4 (Pant-y-Beddau reservoir);

Work No. 5 (Cil-oerwynt reservoir);

Work No. 17 (Road Diversion No. 7);

Work No. 18 (Road Diversion No. 8);

Work No. 20 (Road Diversion No. 9A); and

Work No. 21 (Road Diversion No. 9B).

(2) The Corporation shall also abandon the con-
struction of the dam to form Work No. 6 (Dol-y-
Mynach reservoir) authorised by the Act of 1892 above
the level of the highest point of that dam constructed
before the passing of this Act.

23.—(1) The Corporation during and for the
purpose of the execution of the works authorised by
this Act may temporarily stop up and divert and
interfere with any road bridle road or footpath and
may for any reasonable time divert the traffic therefrom
and prevent all persons other than those bona fide going
to or from any house or building approached from such
road bridle road or footpath from passing along and
using the same.

Temporary
stoppage
of roads
bridle
roads and
footpaths.

(2) The Corporation shall provide reasonable
access for foot-passengers bona fide going to or from
any such house or building.

PART II.

—cont.

Accommo-
dation of
workmen
employed
on autho-
rised works.

24.—(1) The Corporation shall erect fit up and maintain or provide—

- (a) such huts or buildings for the accommodation of the workmen employed in and about the construction of the works authorised by this Act;
- (b) such hospital accommodation for the treatment of cases of sickness or accident among such workmen including accommodation for dealing with infectious diseases;

as shall be reasonably necessary having regard to the accommodation available in the neighbourhood of or conveniently accessible from the said works and shall provide and maintain proper and sufficient sanitary accommodation in connection with every such building and hospital.

(2) The Corporation shall pay all reasonable costs and expenses incurred in respect of the medical and surgical treatment of any workman employed on the construction of the said works who is treated in any hospital accommodation provided by them except in so far as such costs and expenses are payable under the provisions of the National Health Insurance Acts 1936 to 1938 or otherwise.

(3) The medical officer of health of the county council of the county in which any accommodation afforded under this section is situate (in this section called “the county council”) and any officer duly authorised by the county council shall be entitled at any time to enter into inspect and examine such accommodation in order to ascertain whether overcrowding exists therein and whether proper and sufficient sanitary arrangements are provided.

(4) The Corporation shall give such officer all facilities and information which he may reasonably require for the purpose of the performance of his duties including the right to enter upon the said works and any person obstructing such officer in the performance of his duty under this section shall be liable to a penalty not exceeding forty shillings.

(5) If at any time it appears to the county council that the Corporation have failed to afford or maintain accommodation in accordance with subsection (1) of this section the Corporation shall afford and maintain such accommodation as the county council may reasonably require :

PART II.
—cont.

Provided that if within fourteen days after the receipt of notice of any requirement of the county council under this subsection the Corporation give notice to that council that they dispute the reasonableness of any such requirement the difference shall be determined by the Minister on the application of either of the parties to the difference and the Minister may make such requirements (if any) in variation of the requirements of the county council as he may think fit.

(6) If the Corporation fail to afford and maintain accommodation in accordance with the provisions of this section they shall be liable to a penalty not exceeding twenty pounds and to a further daily penalty not exceeding five pounds for every day on which the offence is continued after conviction.

25. For the protection of the county council of the county of Brecknock and the county council of the county of Radnor (each of which is in this section referred to as "the county council") the following provisions shall apply except so far as may be otherwise agreed between the Corporation and the county council :—

For protection of county councils of Brecknock and Radnor.

- (1) The Corporation shall repay to the county council all expenses reasonably incurred by them in or about any strengthening alteration repair or renewal of any county bridge or in the repair of any fords culverts or arches which may be endangered or damaged by passage of the traffic of the Corporation or of their contractors or servants in the exercise of the powers of this Act :

PART II.
—cont.

- (2) The Corporation shall during such period as the works in the county of the county council by this Act authorised are in process of construction pay to the county council the cost of maintaining such an additional number of police as may be reasonably necessary for the due preservation of order and the Corporation shall pay to the county council the costs of the erection of such temporary buildings as may be reasonably necessary for police purposes at such place or places as may be determined by the county council :
- (3) Any difference which may arise between the county council and the Corporation under subsection (1) of this section shall be determined by arbitration and any difference under subsection (2) of this section shall be determined by the Secretary of State.

For protec-
tion of
Postmaster-
General.

41 & 42
Vict.
c. 76.

26. If any such strengthening alteration repair or renewal of any county bridge as is referred to in section 25 (For protection of county councils of Brecknock and Radnor) of this Act shall involve an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General the enactments contained in section 7 of the said Act of 1878 shall apply to any such alteration and the county council carrying out such work shall be deemed to be "undertakers" within the meaning of the said Act.

Exercise of
powers of
section 12
of Water-
works
Clauses
Act 1847.

27. The Corporation may on all or any of the lands for the time being held by them in connection with the water undertaking execute for the purposes thereof or in connection therewith any of the works (other than wells and works for taking and intercepting water) and exercise any of the powers mentioned in or conferred by section 12 of the Waterworks Clauses Act 1847 :

Provided that the Corporation shall not under the powers of this section create or permit the creation or continuance of any nuisance on any such lands.

28. The provisions of the Act of 1892 and of the Birmingham Corporation Water Act 1902 mentioned in this section shall have effect with the modifications herein stated:—

PART II.
—cont.
Application
of certain
provisions
of Acts of
1892 and
1902.
2 Edw. 7.
c. xviii.

- (1) Section 29 (Gauge to be provided) and section 30 (Settlement of disputes between Corporation and parties interested in compensation water) of the Act of 1892 shall have effect as if after the words “the conservators” wherever those words occur there were inserted “the River Wye Catchment Board”:
- (2) Section 46 (Compensation for damage caused by bursting or giving way of reservoirs) of the Act of 1892 shall apply to the Claerwen reservoir:
- (3) Section 53 (Access to commons) of the Act of 1892—
 - (a) shall not apply to lands within the limits of deviation for the works authorised by this Act; and
 - (b) shall apply to lands which were within the limits of deviation for the works referred to in section 22 (Abandonment of certain works authorised by Act of 1892) of this Act and which are not within the limits of deviation either for the works authorised by the Act of 1892 other than the works referred to in the said section 22 or for the works authorised by this Act:
- (4) For the purposes of section 54 (As to fishing rights) of the Act of 1892 the Claerwen reservoir shall be deemed to be one of the upper reservoirs:
- (5) Section 62 (As to supply to local authorities) of the Act of 1892 shall have effect as if the works authorised by this Act had been authorised by the Act of 1892: and
- (6) Section 14 (Byelaws for securing purity of water) of the said Act of 1902 shall have effect as if the works authorised by this Act had been authorised by the Act of 1892.

PART II.
—cont.

Water-works to form part of water undertaking.

29. Subject to the provisions of this Act the waterworks to be constructed by the Corporation under the authority of this Act shall for all purposes be deemed to be part of the water undertaking.

PART III.

OFFICERS' WIDOWS' AND ORPHANS' PENSIONS SCHEME.

Interpretation of Part III.

30. In this Part of this Act unless the context otherwise requires—

“the scheme” means the trust deed dated the third day of August nineteen hundred and thirty-four as amended by section 81 (Widows' and orphans' pension scheme) of the Birmingham Corporation Act 1935 and set forth in the First Schedule to that Act;

words and expressions to which meanings are assigned in the scheme as amended by this Act have the same respective meanings;

2 & 3
Geo. 6.
c. 94.

“the Act of 1939” means the Local Government Staffs (War Service) Act 1939;

the expressions “period of the present emergency” and “war service” have respectively the meanings assigned to those expressions in the Act of 1939.

Scheme to apply to officers undertaking war service.

31.—(1) Any member (other than a superannuitant) who has ceased or shall cease to be in the service of the Corporation in order to undertake war service shall be deemed to continue to be and to have been an officer within the meaning of the scheme as amended by this Act during the period of his war service.

(2) Any member to whom subsection (1) of this section applies shall contribute to the fund the like amounts and so far as may be at the like times as if he had continued to be in the service of the Corporation and for that purpose and for the purpose of determining any pension his salary shall be deemed to be the remuneration which he would have received if he had continued in the service of the Corporation.

(3) If and so far as any contribution is not otherwise paid by any member to whom subsection (1) of this section applies the Corporation may recover the same as a simple contract debt in any court of competent jurisdiction or may deduct the same from any sum payable by the Corporation to such member by way of remuneration or by way of payment under section 1 of the Act of 1939 or may set off the same against any sum that may become payable in respect of such member by way of pension or otherwise out of the fund.

(4) (a) Rule 1 of the scheme shall have effect as if the following paragraph were included therein:—

“(7) Any person who was or may be a member before becoming engaged with the consent of his employing authority in public service other than war service.”

(b) Any person to whom the scheme is applied by virtue of this subsection shall for the purposes of this section be deemed to be a member to whom subsection (1) of this section applies.

(5) This section shall be deemed to have come into operation on the first day of September nineteen hundred and thirty-nine.

32. If a member dies or has died in circumstances in which his widow or children or either or any of them receives or receive a dependants war pension as defined in this section the following provisions shall apply:—

Modifica-
tion of
benefits.

(a) If and so long as the annual amount of a dependants war pension received by the widow or a child of a deceased member is equal to or exceeds the annual amount which would have been payable by way of pension under the scheme no pension shall be payable out of the fund to such widow or child;

(b) If at any time the annual amount of any dependants war pension granted to the widow or a child of a deceased member is less than the annual amount such widow or child would have received under the scheme there shall be

PART III.

—cont.

2 & 3
Geo. 6.
c. 84.

paid out of the fund to her or him a pension equal to the difference between the dependants war pension and the pension which would have been received under the scheme;

- (c) Provided that where by virtue of section 14 of the National Health Insurance and Contributory Pensions (Emergency Provisions) Act 1939 a widow or a child to whom paragraph (a) or paragraph (b) of this section relates is deprived of any pension or allowance which but for the provisions of that section would have been payable to her or him under the Widows' Orphans' and Old Age Contributory Pensions Acts 1936 to 1939 paragraph (a) or (as the case may be) paragraph (b) of this section shall have effect as if the annual amount which would have been payable to her or him by way of pension under the scheme if this section had not been enacted were increased by the pension or allowance of which she or he has been deprived by virtue of the said section 14:

Provided also that in no case shall any such person receive by virtue of this section a pension under the scheme of greater amount than would have been payable thereunder to her or him if this section had not been enacted;

- (d) If in consequence of the provisions of this section no pension is payable out of the fund to the widow or any child of a deceased member a sum equal to the contributions to the fund made by or in respect of such member shall be paid as though it were payable under paragraph (2) of rule 6 of the scheme and if in consequence of those provisions the total amount paid out of the fund by way of pension to the widow and children of a deceased member is less than the total sum contributed by or in respect of such member to the fund the balance of such sum shall be paid out of the fund as though it were payable under the said paragraph (2);

(e) In this section the expression "dependants war pension" means any pension or allowance payable out of moneys provided by Parliament at weekly or other periodical intervals to any person—

PART III.
—cont.

(i) in respect of the death of a member attributable to or connected with his service in the naval military or air forces of the Crown; or

(ii) in respect of the death of a member under a scheme made by virtue of the Personal Injuries (Emergency Provisions) Act 1939.

2 & 3
Geo. 6.
c. 82.
Minor
amend-
ments of
scheme.

33. The scheme shall have effect and shall be deemed to have had effect as from the commencement of the Act of 1937 as if the amendments set out in the schedule to this Act had been made therein.

34.—(1) As soon as may be after the termination of the period of the present emergency the condition of the fund shall be submitted to an actuary appointed by the Corporation who shall investigate the same and make an actuarial valuation of the assets and liabilities of the fund.

Actuarial
investiga-
tion.

(2) If on such valuation the actuary certifies that the condition of the fund permits the payment in whole or in part of pensions which under the foregoing provisions of this Act are to be withheld or the increase of pensions which under those provisions are to be reduced the committee shall prepare and submit to the Corporation a scheme in accordance with the actuary's certificate.

(3) If the Corporation approve a scheme submitted in pursuance of this section that scheme shall come into operation upon the date therein mentioned.

PART IV.

FINANCE AND MISCELLANEOUS.

35.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to

Power to
borrow.

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Act, 1940.

PART IV.
—cont.

borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all moneys so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table :—

1	2	3
Purpose.	Amount.	Period for repayment.
(a) The purchase of lands under the powers of this Act.	£ 7,500	Sixty years from the date or dates of borrowing.
(b) The construction of the works authorised by this Act.	1,021,000	Sixty years from the date or dates of borrowing.
(c) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) The provisions of article V (Additional borrowing powers for waterworks purposes) of the Birmingham (Water and Gas) Order 1914 which was confirmed by the Local Government Board's Provisional Order Confirmation (No. 14) Act 1914 shall have effect as if this Act were mentioned in sub-division (1) of that article.

4 & 5
Geo. 5.
c. cxxxiv.

36. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 it shall not be lawful to exercise the powers of borrowing conferred by this Act without such consent.

Saving for emergency restrictions on borrowing.
2 & 3
Geo. 6.
c. 62.

37. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration the reference shall be subject to the provisions of the Arbitration Acts 1889 to 1934 and unless other provision is made or it is otherwise agreed the arbitrator shall be appointed by the Minister.

Applica-
tion of
Arbitration
Acts.

38.—(1) The following provisions so far as the same are applicable in that behalf shall with any necessary modifications extend and apply to the exercise of the powers of this Act in the same manner as if those provisions were re-enacted in this Act (namely):—

Applica-
tion of
existing
enact-
ments.

Birmingham Corporation (Consolidation) Act
1883—

46 & 47
Vict.
c. lxx.

Section 8 (Power to appoint committees);

Section 9 (Proceedings of committees);

Section 284 (Provision in case of occupier opposing execution of Act);

Section 289 (Protection of members and officers of Corporation); and

Section 294 (Powers of Act cumulative).

Birmingham Corporation Act 1905—

5 Edw. 7.
c. lviii.

Section 30 (Power to persons under disability to grant easements &c.).

Birmingham Corporation Act 1914—

4 & 5
Geo. 5.
c. cvi.

Section 61 (Compensation in case of recently acquired interests).

Birmingham Corporation (General Powers) Act
1929—

20 Geo. 5.
c. xxxviii.

Section 8 (Power to enter upon property for survey and valuation);

Section 9 (Power to reinstate owners of property); and

Section 10 (Extinction of private rights of way).

3 & 4 GEO. 6.

—cont.

(2) Provided that in the application of section 61 of the said Act of 1914 the twentieth day of November nineteen hundred and thirty-nine shall be deemed to be referred to instead of the eighteenth day of November nineteen hundred and thirteen.

Application of provisions of Public Health Act 1936.

39.—(1) The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 293 (Recovery of expenses &c.);

Section 296 (Summary proceedings for offences):

Section 297 (Continuing offences and penalties); and

Section 304 (Judges and justices not to be disqualified by liability to rates).

(2) The following sections of the Act of 1936 shall extend and apply in relation to any local Act for the time being in force in the city as if such sections were re-enacted in that local Act and in terms made applicable thereto (that is to say) :—

Section 283 (Notices to be in writing; forms of notices &c.);

Section 285 (Service of notices &c.).

**Application
of Special
Enactments
(Extension
of Time) Act
1940.
3 & 4 Geo. 6.
c. 16.**

40. Notwithstanding anything in the Special Enactments (Extension of Time) Act 1940 that Act shall apply to the powers conferred by this Act to execute works and to purchase or acquire lands compulsorily.

Crown rights.

41. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere

with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands without the consent in writing of those Commissioners on behalf of His Majesty first had and obtained for that purpose.

PART IV.
—cont.

42. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of moneys to be borrowed under this Act for that purpose.

Costs of
Act.

The SCHEDULE referred to in the
foregoing Act.

AMENDMENTS OF SCHEME.

Number of clause
or rule of the
scheme.

Amendments.

Clause 1.

The clause shall have effect as if after the definition of "the Act of 1922" there were inserted—

1 Edw. 8. &
1 Geo. 6.
c. 68.

" ' The Act of 1937 ' The Local Government Superannuation Act 1937."

For the definition of " officer " the following shall be substituted :—

" ' Officer ' A whole-time male employee of the Corporation (not subject to trade union conditions) on the permanent administrative technical professional or clerical staff of the Corporation to whom the Act of 1937 applies but excluding (except as otherwise determined under rule 1) traffic inspectors employed in the transport department of the Corporation nurses and depot clerks."

The definition of " superannuitant " shall have effect as if after the words " the Act of 1922 " the words " or section 8 (1) (a) of the Act of 1937 " were inserted.

For the definition of " salary " the following shall be substituted :—

" ' Salary ' Remuneration as defined in section 40 of the Act of 1937 up to a maximum rate of eight hundred pounds in any one year of service."

The definition of " widow " shall have effect as if after the words " the Act of 1922 " the words " or section 8 (1) (a) of the Act of 1937 " were inserted.

Clause 4.

Subclause (4) shall have effect as if after the words " the Act of 1922 " the words " or section 8 (1) (a) of the Act of 1937 " were inserted.

Number of clause
or rule of the
scheme.

Amendments.

Clause 5. The following shall be substituted :—

“ 5. It shall be made a condition of employment of every officer appointed by the Corporation on or after the appointed date who is under the age of thirty years on appointment to the permanent staff that he shall become a member on appointment to the permanent staff or on the attainment of the age of eighteen whichever is the later.”

Clause 17. The clause shall have effect as if the following subclause were added thereto :—

“ (3) An amendment of the scheme may be effected by a deed executed by the Corporation the trustees and three members of the committee present at such meeting as aforesaid.”

Rule 1. For paragraph (3) the following paragraph shall be substituted :—

“ (3) Any person of any age for the time being on the administrative technical professional or clerical staff of the Corporation superannuable under any Act.”

Rule 2. Paragraph (2) shall have effect as if after the words “ the Act of 1922 ” there were inserted the words “ or section 8 (1) (a) of the Act of 1937 ” and as if the following proviso were added thereto :—

“ Provided also that a superannuitant shall not pay contributions on any part of his superannuation allowance which is attributable to that part of his salary in excess of eight hundred pounds.”

Rule 4. The rule shall have effect as if after the words “ the Act of 1922 ” wherever those words occur there were inserted “ or the Act of 1937.”

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